

Singhal Cold Storage And Alloyd Industries v. State of U.P.

Allahabad High Court · Division Bench · 21 March 2017 · Writ-C No. 35397 of 2013 · **Writ dismissed following order of even date in Writ-C 30898 of 2016**

HEADNOTE

Writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 dismissed by following the order of even date in Writ-C No. 30898 of 2016. An earlier Division Bench had, on 4 July 2013, connected the petition with WP 30582 of 2009 and similar matters and restrained demand of additional security until further orders.

FACTUAL SUMMARY

Petitioners including Singhal Cold Storage and Alloyd Industries challenged a demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. The writ was connected with Writ Petition No. 30582 of 2009 (M/s Vehina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.) and similar challenges. On 4 July 2013 the Court restrained the respondents from demanding additional security, following the interim order in that connected petition. The matter was later listed before the Chief Justice's Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ petition challenging demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, with reasons to be seen in the order of even date in Writ-C No. 30898 of 2016. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INDEPENDENT CONSTRUCTION OF PARA 4.20 ADDITIONAL-SECURITY DEMAND

No independent reasons recorded; dismissal follows the order of even date in Writ-C No. 30898 of 2016. ¶ 2